

// companion licence • founding ten programme

IP Licence Deed

Intellectual Property Licence Deed

Body Recode Founding Ten programme Draft v0.1 — For legal review only. Not for execution.

Companion to: `FOUNDING_PARTNER_AGREEMENT_v0.1.md` dated the same date.

PARTIES

Body Recode Pty Ltd ACN [] of [Brisbane address], Queensland, Australia (**Licensor** or **Body Recode**)

[**Partner legal entity name**] ACN [] of [address], Australia (**Licensee** or **Partner**)

Each a **Party** and together the **Parties**.

01 BACKGROUND

A. Body Recode has developed a proprietary interpretation engine (Layer 1) and coaching platform (Layer 2). Together they constitute a specialised system for reading biological, physiological, and behavioural state and delivering coaching direction.

B. Body Recode has decided to licence Layer 2 (and controlled API access to Layer 1) to a limited group of ten allied coaches under the “Founding Ten” programme. Licensee is one of the ten.

C. This deed records the intellectual property terms on which Licensee accesses and uses Body Recode’s IP.

D. This deed is executed together with a Founding Partner Agreement (**Commercial Agreement**) between the Parties. Both documents form one package.

02 OPERATIVE PROVISIONS

03 1. DEFINITIONS

In this deed, unless the context otherwise requires:

Body Recode IP means all Layer 1 IP and all Layer 2 IP.

Body Recode Marks means the trade marks, service marks, logos, and trade dress owned by Body Recode, including without limitation the “Body Recode” wordmark, the BR logo lockup, the “Powered by Body Recode” mark, and any other mark notified by Body Recode from time to time. A schedule of key marks is at Schedule 2.

Client Data has the meaning given in the Commercial Agreement.

Commercial Agreement means the Founding Partner Agreement between the Parties dated the same date as this deed.

Confidential Information has the meaning given in the Commercial Agreement.

Doctrine means the interpretation rules, safety floors, clinical logic, prompt libraries, prompt versioning, banned-term lists, decision trees, and supporting content that give the Engine its output character, whether embodied in code, prompts, configuration, or documentation, as maintained by Body Recode.

Engine means the interpretation engine used by Body Recode to read a client’s state and produce coaching direction, comprising the algorithms, machine learning models, prompts, Doctrine, and supporting infrastructure. The Engine constitutes the whole of Layer 1 IP together with related documentation.

Excluded IP means the Body Recode IP set out in Schedule 1 Part B, which is not licensed under this deed except where a limited API access licence is expressly granted in clause 3.

Improvements means all improvements, modifications, extensions, enhancements, derivative works, translations, adaptations, arrangements, and updates to any part of the Body Recode IP, whether made by Body Recode, Licensee, or a third party.

Instance has the meaning given in the Commercial Agreement.

Layer 1 IP means: (a) the Engine, including its algorithms, machine learning models, prompts, and prompt libraries; (b) the Doctrine; (c) the underlying data models that describe how a client’s state is interpreted; (d) trade secrets contained in any of (a) to (c); and (e) all Intellectual Property Rights in any of the above.

Layer 2 IP means: (a) the coaching web application (the Platform), including all source code, object code, user interface elements, styling, and content; (b) the tenant configuration schema and multi-tenancy infrastructure; (c) the Instance provisioned to Licensee; (d) the documentation, playbooks, feature registries, deployment checklists, and internal knowledge base; (e) modality packs (strength, yoga, and others) as made available to Licensee; and (f) all Intellectual Property Rights in any of the above.

Licensed IP means the Body Recode IP that Licensee is licensed to use under this deed, being Layer 2 IP as further described in Schedule 1 Part A.

Modality has the meaning given in the Commercial Agreement.

Powered by Body Recode Mark means the specific “Powered by Body Recode” lockup shown in Schedule 2 Part B.

Term has the meaning given in the Commercial Agreement.

04 2. GRANT OF LICENCE — LICENSED IP

2.1 Subject to the terms of this deed and payment of the Fees under the Commercial Agreement, Body Recode grants Licensee a:

- a. **non-exclusive**,
- b. **non-transferable**,
- c. **non-sublicensable** (except as expressly permitted in clause 2.3),
- d. **revocable** (in accordance with clause 9),
- e. **worldwide** (subject to clause 2.5),
- f. licence for the Term to use the Licensed IP solely for the purpose of operating Licensee’s Instance and delivering coaching services in Licensee’s Modality to Licensee’s own Partner Clients.

2.2 The rights granted under clause 2.1 permit Licensee to:

- a. access the Platform via the Instance;
- b. use the modality pack for Licensee’s chosen Modality;
- c. present Instance output to Licensee’s Partner Clients under Licensee’s own brand;
- d. reproduce Instance-generated content as necessary to communicate with Partner Clients (email, SMS, portal, PDF export);
- e. use the deployment documentation, feature registries, and playbooks to run the Instance;
- f. create and manage Sub-User accounts within the limits set out in the Commercial Agreement.

2.3 Licensee may sublicense the rights in clause 2.2 to Sub-Users only for the purpose of the Sub-User discharging their role in Licensee's business. Any sublicense terminates automatically on cessation of the Sub-User's engagement with Licensee.

2.4 The Licence does not permit Licensee to: (a) reproduce or use Licensed IP outside the operation of the Instance; (b) provide the Licensed IP or Instance access to third parties (other than Sub-Users and Partner Clients within the ordinary course of coaching); (c) create a competing coaching platform or software product based on the Licensed IP; or (d) publish, disclose, or distribute the Licensed IP or any derivative of it.

2.5 If Licensee wishes to operate the Instance in a country other than Australia, Licensee must notify Body Recode in advance. Body Recode may impose reasonable additional conditions (data residency, compliance with local law, additional fees) as a condition of consent.

05 3. LIMITED API ACCESS TO ENGINE (LAYER 1 IP)

3.1 The Engine is Layer 1 IP and Excluded IP. It is not licensed for use by Licensee except as follows.

3.2 Body Recode grants Licensee a limited, non-exclusive, non-transferable, revocable licence for the Term to access the Engine solely via the Platform's tenant-scoped API, for the purpose of receiving interpretations and coaching direction for Licensee's Partner Clients.

3.3 The Engine access licence permits Licensee to: (a) submit Partner Client data via the API for interpretation; (b) receive interpretive output and coaching direction from the Engine; (c) present that output to Partner Clients under Licensee's brand, subject to any coach-review-and-approve steps required by the Platform; (d) store Engine output as Client Data on the Instance.

3.4 The Engine access licence does not permit Licensee to: (a) attempt to access the Engine's underlying code, prompts, models, or Doctrine; (b) reverse engineer, decompile, or attempt to extract or derive the algorithms, models, prompts, or Doctrine from the Engine's output; (c) train, fine-tune, or otherwise contribute to the training or improvement of a competing model or engine using Engine output or Instance data; (d) use Engine output as a training corpus, fine-tuning corpus, or evaluation corpus for any purpose other than the ordinary review of coaching quality within Licensee's business.

3.5 Body Recode may monitor Engine usage to enforce fair use, detect anomalies, and prevent abuse.

06 4. RESTRICTIONS

4.1 Licensee will not, and will procure that its Sub-Users and Partner Clients (to the extent within Licensee's control) will not:

- a. decompile, reverse engineer, disassemble, or attempt to derive the source code, structure, prompts, or algorithms of the Body Recode IP;
- b. modify, adapt, translate, or create derivative works based on the Body Recode IP other than trivial customisation of Licensee's own brand shell;
- c. remove, obscure, or alter any proprietary notice, watermark, licence notice, or attribution;
- d. grant rights in the Body Recode IP to any third party by sublicense, assignment, or otherwise, except as expressly permitted;
- e. publish or use the Body Recode IP for benchmarking, competitive analysis, or the development of a competing product;
- f. use the Body Recode IP for any illegal, misleading, or deceptive purpose or for any purpose contrary to public policy;
- g. use the Body Recode IP to provide services in Modalities not licensed under this deed;
- h. attempt to circumvent, disable, or interfere with the Hard Safety Floors, tenant isolation, rate limits, or other technical controls in the Platform.

4.2 The restrictions in clause 4.1 survive termination.

07 5. TRADEMARK AND BRAND

5.1 Body Recode Marks remain the sole property of Body Recode. Licensee does not acquire any right, title, or interest in Body Recode Marks by virtue of this deed.

5.2 Licensee is not required to display any Body Recode Mark on the Instance or in Licensee's marketing. Licensee's Instance runs under Licensee's own brand by default.

5.3 If Licensee elects to display the Powered by Body Recode Mark, Licensee will: (a) use it only in the form and lockup set out in Schedule 2 Part B, or as varied by Body Recode from time to time; (b) not modify, distort, animate, colour-shift, or otherwise misuse the Powered by Body Recode Mark; (c) use it consistently across the Instance if used at all (i.e. not selectively); (d) not use the Powered by Body Recode Mark on merchandise, physical assets, or in any context outside the digital Instance without prior written consent; (e) cease use of the Powered by Body Recode Mark on termination of this deed.

5.4 Licensee will not use any Body Recode Mark: (a) as part of Licensee's own trade mark, business name, domain name, or corporate identity; (b) in a way that suggests that Licensee is Body Recode or that Licensee's coaching services are provided by Body Recode; or (c) in any way that damages or dilutes the goodwill or reputation of Body Recode Marks.

5.5 Any goodwill arising from Licensee's use of the Powered by Body Recode Mark accrues to Body Recode.

08 6. LICENSEE IP

6.1 Licensee retains all right, title, and interest in Licensee's own intellectual property, including:

- a. Licensee's own brand marks, logos, trade dress, and marketing materials;
- b. coaching content authored by Licensee that is uploaded to or created within the Instance (e.g. custom program templates, coaching notes, communications to Partner Clients);
- c. Client Data (subject to the platform-processing arrangement in the Commercial Agreement); and
- d. Licensee's Modality-specific know-how and IP where different from the Doctrine.

6.2 Body Recode does not acquire any right, title, or interest in Licensee IP by virtue of this deed, except:

- a. a limited, non-exclusive licence for the Term to display, reproduce, and process Licensee's brand marks and coaching content on the Instance as necessary to operate the Instance and deliver the Services;
- b. the right to reference Licensee's brand and business (with prior written consent) in Founding Ten case studies and marketing under clause 3.2 of the Commercial Agreement.

6.3 The Instance may enable Licensee to extend or override certain tenant configuration items (Program coach guidance, Nutrition coach guidance, Product wrapping, etc.). Content Licensee inputs to those extension surfaces remains Licensee IP, subject to clause 7 (Improvements).

09 7. IMPROVEMENTS

7.1 All Improvements to the Body Recode IP, however arising, are owned by Body Recode.

7.2 Where an Improvement is derived from, or incorporates, Licensee's coaching methodology or IP that predates or sits outside this deed:

- a. the Improvement itself is owned by Body Recode;
- b. Licensee retains ownership of the pre-existing methodology or IP; and
- c. Body Recode grants Licensee a perpetual, royalty-free licence to use the Improvement for Licensee's own coaching purposes (including after termination), subject to the confidentiality obligations that survive termination.

7.3 If Licensee proposes a feature, enhancement, or Doctrine refinement that Body Recode incorporates into the Body Recode IP, Body Recode will acknowledge Licensee in the associated release notes to the extent commercially reasonable.

7.4 Nothing in this clause creates an obligation on Body Recode to accept or incorporate any suggestion, feedback, or proposed Improvement from Licensee.

10 8. WARRANTIES AND INDEMNITY

8.1 Body Recode warrants that:

- a. Body Recode owns or has the right to license the Body Recode IP;
- b. to Body Recode's actual knowledge as at the date of this deed, use of the Licensed IP by Licensee in accordance with this deed does not infringe the Intellectual Property Rights of any third party;
- c. Body Recode has the right to grant the licences under clauses 2 and 3.

8.2 Body Recode will indemnify Licensee against any loss, cost, or damage awarded by a court, or agreed in a written settlement negotiated by Body Recode, arising out of a third party claim that Licensee's use of the Licensed IP in accordance with this deed infringes that third party's Intellectual Property Rights.

8.3 Body Recode's indemnity under clause 8.2 is subject to:

- a. Licensee notifying Body Recode promptly on becoming aware of the claim;
- b. Licensee not making any admission, settlement, or compromise without Body Recode's prior written consent;
- c. Licensee providing Body Recode with control of the defence and reasonable cooperation; and
- d. the claim not arising from Licensee's breach of this deed, misuse of the Body Recode IP, or combination of the Licensed IP with content or software not supplied by Body Recode where the claim would not have arisen but for that combination.

8.4 If a claim under clause 8.2 arises or is threatened, Body Recode may at its option and expense:

- a. procure for Licensee the right to continue using the affected Licensed IP;
- b. modify or replace the affected Licensed IP so it becomes non-infringing while retaining substantially equivalent functionality; or
- c. terminate this deed on written notice and refund the pro-rata unused portion of any prepaid Fees for the balance of the then-current period.

8.5 Licensee warrants that:

- a. Licensee's use of the Licensed IP will comply with this deed and applicable law;
- b. Licensee has the right to input its own IP and Client Data into the Instance;
- c. Licensee's own coaching content, brand marks, and marketing do not infringe any third party's rights; and

- d. Licensee will not use the Licensed IP for any purpose beyond the scope of the licence granted.

8.6 Licensee will indemnify Body Recode against any loss, cost, or damage arising out of any breach of clause 8.5.

11 9. TERM AND TERMINATION

9.1 This deed commences on the Commencement Date under the Commercial Agreement and continues until the earlier of:

- a. expiry or termination of the Commercial Agreement; or
- b. termination of this deed under clause 9.2 or 9.3.

9.2 **Termination by Body Recode.** Body Recode may terminate this deed immediately by written notice if Licensee:

- a. breaches clause 4 (Restrictions), clause 5 (Trademark and Brand), or clause 3 (Engine access limits), and does not immediately remedy the breach on written notice;
- b. commits a material breach of any other clause and does not remedy the breach within thirty (30) days of written notice; or
- c. is subject to an insolvency event.

9.3 **Termination by Licensee.** Licensee may terminate this deed immediately by written notice if Body Recode:

- a. is subject to an insolvency event; or
- b. materially breaches its warranty in clause 8.1 and does not remedy within thirty (30) days.

9.4 Termination of this deed automatically terminates the Commercial Agreement, and vice versa.

9.5 **Effect of termination.** On termination:

- a. all licences granted under clauses 2 and 3 end immediately, subject to any wind-down period agreed in the Commercial Agreement;
- b. Licensee will cease all use of the Body Recode IP and Body Recode Marks;
- c. Licensee will destroy or return any physical or electronic copies of the Body Recode IP in its possession or control (excluding archived backups where deletion is not technically feasible, which Licensee will hold subject to the confidentiality obligations in perpetuity);
- d. accrued rights and remedies of either Party are not affected; and
- e. provisions that are expressed to survive, or that by their nature ought to survive, continue in force.

9.6 Clauses that survive termination include: clauses 1 (Definitions), 4 (Restrictions), 5.4 and 5.5 (Restrictions on Marks + goodwill accrual), 6.1 (Licensee IP retention), 7 (Improvements), 8 (Warranties + Indemnity in respect of claims that arose before termination), 9.5 (Effect of termination), 10 (Confidentiality), 11 (Notice + General), and any other clause that by its nature is intended to survive.

12 10. CONFIDENTIALITY

10.1 The confidentiality obligations in the Commercial Agreement (clause 11 of that document) apply equally to information disclosed under or in connection with this deed and are incorporated by reference.

10.2 Without limiting clause 10.1, Licensee acknowledges that the Body Recode IP includes trade secrets (including the Doctrine and Engine prompts) which have significant commercial value derived from their secrecy. Licensee will:

- a. treat all Body Recode IP as Confidential Information;
- b. not disclose Body Recode IP to any third party, and will restrict internal access on a need-to-know basis;
- c. apply security measures no less rigorous than those Licensee applies to its own most sensitive confidential information; and
- d. notify Body Recode immediately on becoming aware of any suspected or actual unauthorised disclosure or access.

10.3 Confidentiality obligations in respect of the Body Recode IP survive termination in perpetuity to the extent the information remains a trade secret or is not otherwise in the public domain through no breach of this deed.

13 11. GENERAL

11.1 **Governing law.** This deed is governed by the laws of Queensland, Australia. Each Party submits to the exclusive jurisdiction of the Courts of Queensland.

11.2 **Nature of instrument.** This deed is executed as a deed. Consideration is not required. The limitation period for actions on this deed is twelve (12) years or as otherwise provided by law.

11.3 **Entire agreement.** This deed, together with the Commercial Agreement, constitutes the entire agreement between the Parties on the subject matter and supersedes all prior representations, proposals, and understandings.

11.4 Amendment. No amendment is effective unless made in writing and executed by both Parties with the same formalities as this deed.

11.5 Assignment. Neither Party may assign or transfer any right or obligation under this deed without the other Party's prior written consent. Body Recode may assign to a successor entity acquiring Body Recode's business or to an affiliate, on written notice to Licensee, provided the assignee agrees in writing to be bound.

11.6 Notices. Notices under this deed are given in accordance with clause 17.5 of the Commercial Agreement.

11.7 Waiver. No waiver is effective unless in writing.

11.8 Severability. If any provision is unenforceable, it is severed to the extent necessary without affecting the remainder.

11.9 Counterparts. This deed may be executed in counterparts and by electronic signature to the extent permitted by the Electronic Transactions Act 1999 (Cth) and equivalent Queensland legislation.

11.10 Relationship. Nothing in this deed creates a partnership, joint venture, agency, or employment relationship.

14 EXECUTION

Executed as a deed

Body Recode Pty Ltd ACN [__]

Executed in accordance with section 127 of the Corporations Act 2001 (Cth):

Signature of director: _____ Name: Kade Dunstone Date:

Signature of second director or company secretary: _____ Name:

_____ Date: _____

[Partner legal entity name] ACN [__]

Executed in accordance with section 127 of the Corporations Act 2001 (Cth):

Signature of director: _____ Name: _____ Date: _____

Signature of second director or company secretary: _____ Name: _____
Date: _____

[LEGAL REVIEW: alternative execution block required if Partner is a sole trader or trust rather than a proprietary company.]

15 SCHEDULE 1 — SCOPE OF LICENSED IP

Part A: Licensed IP (Layer 2)

Licensee is licensed to use the following, solely for operating the Instance:

1. The coaching web application (the Platform) as accessed via the tenant-scoped Instance.
2. The tenant configuration schema and all fields exposed at `/dashboard/settings/tenant` including brand shell, coach identity, product wrapping, licence, and modality.
3. The modality pack for the Modality recorded in the Commercial Agreement.
4. Deployment documentation, playbooks, feature registries, and internal knowledge base to the extent made available to Licensee for the purpose of operating the Instance.
5. Publishing pipelines and tools tenant-scoped to the Instance (SMS, email, digital assets, IG native publishing, waitlist, product launches).
6. Client-facing outputs generated by the Platform under Licensee's brand (portal pages, emails, SMS, PDFs, in-app content).
7. Administrative surfaces required to run the Instance (dashboards, buildout view, health checks scoped to Licensee's data).

Part B: Excluded IP (not licensed except under clause 3)

The following are not licensed to Licensee. Where Licensee interacts with them, it is only via the tenant-scoped API and only for the purpose of receiving interpretations for Partner Clients.

1. The Engine, including its algorithms, prompts, prompt libraries, machine learning models, model weights, and the code that runs them.
2. The Doctrine in all its forms (rule sets, decision trees, banned-term lists, safety-floor constants, versioned prompt collections, coach-facing prompt overrides).

3. The underlying data models describing how a client's state is interpreted (Fat Map, Body State, Weekly Pattern, Trajectory, etc.).
4. Any interpretive artefact catalog beyond what is exposed to the Instance (Foundational Reading, Program Reading, Nutrition Reading, Trajectory Reading templates and generation rules).
5. Body Recode's own client base, marketing surfaces, funnels, and content library.
6. Any code, content, or data related to other Body Recode brands (Precision Coaching, Arete Protocol, AI Coaching Movement) or other tenants.

16 SCHEDULE 2 — BODY RECODE MARKS

Part A: Body Recode Marks

The following marks are owned by Body Recode. Licensee is not licensed to use any of these except as expressly provided in clause 5:

1. **Body Recode** wordmark
2. **BR** logo mark (blue rounded square with "BR" letters)
3. **Body Recode Decode Rewire Rebuild** logo lockup
4. Any Body Recode tagline or slogan
5. `body_recode_`, `bodyrecode.au`, and related domain names, handles, and identifiers

Part B: Powered by Body Recode Mark

Optional use by Licensee. Consistent form to be applied if used at all.

Form: *"Powered by Body Recode"* text, or the composite lockup shown at `bodyrecode.au/brand-assets/powered-by`, in monochrome or in Signal Blue (#1B6DFC).

Placement guidelines: - Footer of Instance client-facing pages (recommended) - Footer of emails sent from the Instance (recommended) - Not to be placed above the fold or given primary prominence - Not to be modified, distorted, animated, or colour-shifted - Not to be used on merchandise or physical assets without written consent

END OF IP LICENCE DEED — v0.1 DRAFT

Companion document: `FOUNDING_PARTNER_AGREEMENT_v0.1.md`